

Ref: SC/1117a

Courtyard Management Company (Rock Lane Farm) Limited
The Old Stables
Dean Farm Lane
Soulbury
Leighton Buzzard
LU7 0DE

9th July 2018

Dear Sir/Madam

Land at Liscombe Park, Soulbury, LU7 0JL

By way of an introduction, my name is Simon Codd and I am a Wayleave Surveyor for UK Power Networks.

I am writing regarding land at Liscombe Park, Soulbury, which is registered to your ownership under Land Registry title BM401687.

As you may be aware, UKPN have been approached to provide an electricity connection to a new development at Liscombe Park, and as part of the project we are looking to install new equipment on the land you own.

The work we are looking to carry out would involve installing a new route of underground cable through your land, as shown by the route highlighted yellow on the enclosed plans.

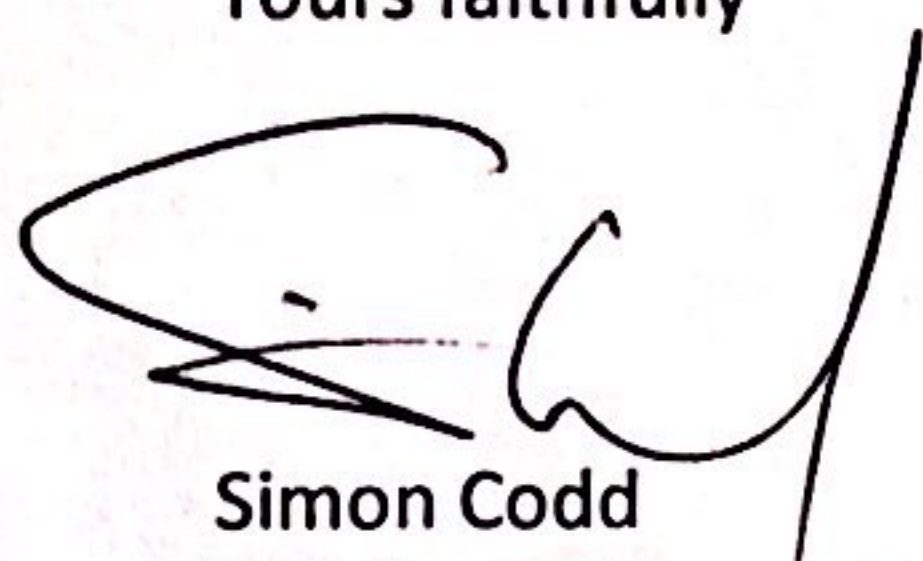
The purpose of my letter is to establish whether you would be prepared to grant consent for the new underground cable to be installed on your land, as any new works requires the consent of the landowner.

I have taken the liberty of enclosing two draft Wayleave agreements to cover the works. Please read through the paperwork and if after due consideration you feel prepared to grant consent for the works, then please complete the agreements, returning one copy to me in the envelope provided and retaining the other copy for your records.

UK Power Networks will take all reasonable steps to ensure that any work is carried out with the minimum of disruption and offer an undertaking to make good any damage that may be caused as a result of the proposed works.

I hope this is acceptable and adequately explains the proposal; please get in touch if you have any questions or need any further information.

Yours faithfully

A handwritten signature in black ink, appearing to be 'Simon Codd', written over a horizontal line.

Simon Codd
Wayleave Surveyor
Property & Consents

UK Power Networks Ref:

Wayleave Agreementmade the **20** day of **July** 2018

BETWEEN: Courtyard Management Company (Rock Lane Farm) Limited ("the Grantor") Registered Address: The Old Stables, Dean Farm Lane, Soulbury, Leighton Buzzard, LU7 0DE

of the one part and

Eastern Power Networks plc whose registered office is Newington House, 237 Southwark Bridge Road, London, SE1 6NP ("the Company") of the other part

IT IS AGREED as follows:-

1.- DEFINITIONS

"the Company" includes its Subsidiaries, Associated Companies, successors and assigns

"the Grantor" includes its tenants, licensees and employees

"the Plan" means the plan annexed hereto

"the Property" means the land shown on the Plans

"the Works" means the works shown on the Plan and described in the Schedule

2.- THE RIGHTS

THE Grantor hereby grants consent for the Company:-

- (a) To install, maintain, inspect, alter, renew, remove and retain the Works and to enter the Property at all reasonable times (or at any time in the case of emergency) with or without vehicles plant or machinery for such purposes
- (b) To fell or lop in a woodman like manner any tree or hedge on the Property which obstructs or interferes with the Works

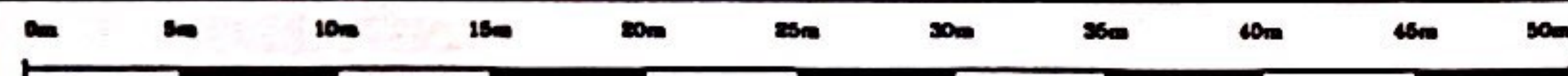
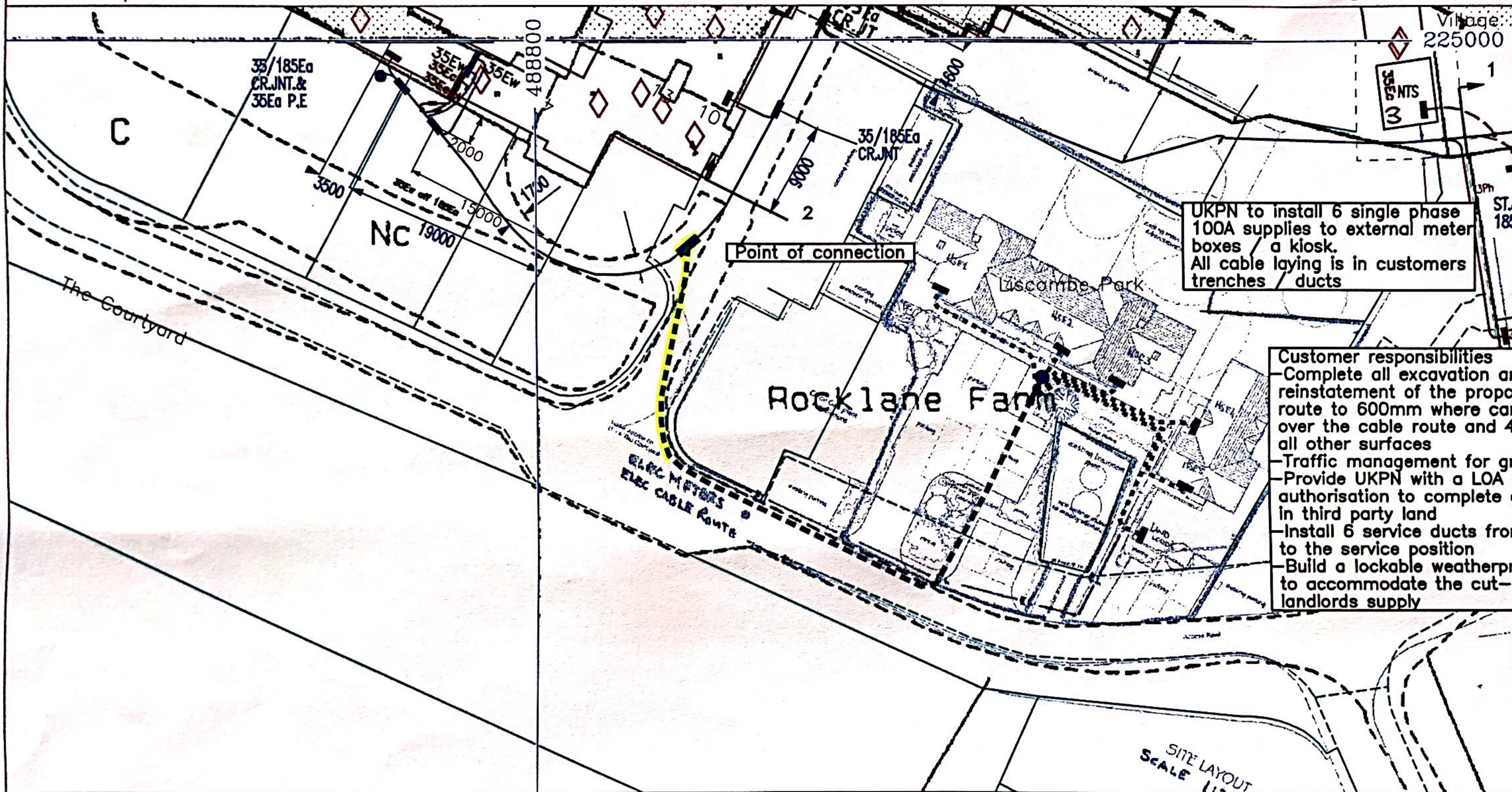
3.- THE COMPANY'S COVENANTS

THE Company shall:-

- (a) Not cause any unnecessary damage or injury to the Property and shall take all reasonable precautions to avoid obstruction or interference with the use of any road or footpath sewer drain or watercourse that may be crossed by the Works
- (b) Make good to the reasonable satisfaction of the Grantor any damage caused by or arising out of the execution of the Works. If for any reason any such damage cannot be made good the Company shall compensate the Grantor in an amount which has previously been approved by the Company
- (c) Give to the Grantor not less than three days' previous notice (except in cases of emergency when as long notice as practicable shall be given) of the intended exercise of any of the rights conferred by Clause 2 above
- (d) During the continuance of this Agreement pay to the Grantor in respect of the consent hereby given annual sums in accordance with current figures published from time to time by the Energy Networks Association (excluding payments in relation to underground cables which are not published by the ENA)

Plot Description

STANDARD PLOT



The quality and accuracy of any print will depend on your printer, your computer and its print settings. Measurements scaled from this plan may not match measurements between the same points on the ground.

LV Cable	
HV Cable	
EHV Cables	
Duct	
Pole & Street Furniture	 
Substation & Link Box	 

1. The position of the apparatus shown on this drawing is believed to be correct but the original landmarks may have been altered since the apparatus was installed.
2. The exact position of the apparatus should be verified – use approved cable avoidance tools prior to excavation using suitable hand tools.
3. It is essential that trial holes are carefully made avoiding the use of mechanical tools or picks until the exact location of all cables have been determined.
4. It must be assumed that there is a service cable into each property, lamp column and street sign, etc.
5. All cables must be treated as being live unless proved otherwise by UK Power Networks.
6. The information provided must be given to all people working near UK Power Networks' plant & equipment. Do not use plans more than 3 months after the issue date for excavation purposes.
7. Please be aware that electric cables/lines belonging to other owners of licensed electricity distribution systems may be present and it is your responsibility to identify their location.

1. UK Power Networks does not warrant that the information provided to you is correct. You rely upon it at your own risk.
2. UK Power Networks does not exclude or limit its liability if it causes the death of any person or causes personal injury to a person where such death or personal injury is caused by its negligence.
3. Subject to paragraph 2 UK Power Networks has no liability to you in contract, in tort (including negligence), for breach of statutory duty or otherwise for any loss, damage, cost, claims, demands, or expenses that you or any third party may suffer or incur as a result of using the information provided whether for physical damage to property or for any economic loss (including without limitation loss of profit, loss of opportunity, loss of savings, loss of goodwill, loss of business, loss of use) or any special or consequential loss or damage whatsoever.
4. This plan has been provided to you on the basis of the terms of use set out in the covering letter that accompanies this plan. If you do not accept and/or do not understand the terms of use set out in the covering letter you must not use the plan and you must return it to the sender of the letter.
5. You are responsible for the security of the information provided to you. It must not be given, sold or made available upon payment of a fee to a third party.

Grid Ref : SP8824NE

Scale 1:500

(When Plotted at A4)

Plotted on : 09/07/2018

Plotted by : Simon Codd



IF IN DOUBT - ASK! PHONE 0800 058 5866
EMERGENCY - If you damage a cable or line
Phone 0800 780 0780 (24hrs) URGENTLY



**ALWAYS LOOK UP BEFORE
YOU START WORK**
Refer to HSE Guidance
note GS6

Maps produced at 1:2500 scale are LV Geo-Schematics which show LV mains cables and overhead lines (in some cases all voltages). Prior to carrying out excavations you must refer to the 1:500 records to determine the location of all known underground plant and equipment.

- (e) At all times keep the Grantor indemnified against all losses, damages and expenses reasonably foreseeable at the date of this Agreement which he suffers or incurs by reason or on account of any breach of this Agreement including any negligent act or omission of the Company in connection with the execution or existence of the Works provided that this indemnity shall not extend to any such losses damages or expenses to the extent caused by the default of the Grantor

4.- THE GRANTOR'S COVENANTS

THE Grantor shall not:-

- (a) Do or cause or permit to be done on the Property anything likely to cause damage or interference of any kind to the Works
- (b) Make or cause or permit to be made any material alteration to the Property so as to interfere with or obstruct the access to the Works or so as to interfere with the support afforded to the Works by the surrounding soil without the prior written consent of the Company

5.- TERMINATION

This Agreement shall remain in force until determined at the expiry of not less than twelve months' previous written notice given at any time by either party but without prejudice to the rights, which the Company might exercise under the Electricity Act 1989

THE SCHEDULE

THE placing of underground cable(s) for transmitting electricity, such cable(s) to be in the approximate position shown highlighted Yellow on the attached plan.

THE parties hereto have set their hands the day and year first above written

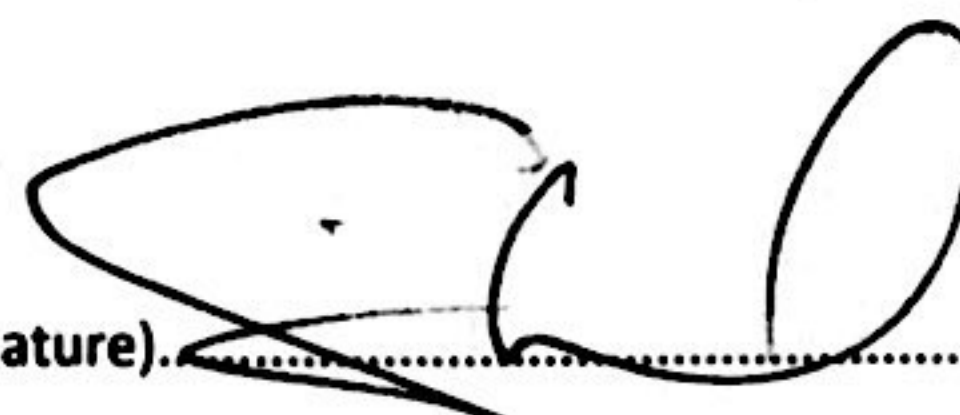
SIGNED By/on behalf of Courtyard Management Company (Rock Lane Farm) Limited

(Grantor's Signature).....

 DIRECTOR

SIGNED BY Mr S Codd

(Agent's Signature).....



For and on behalf of Eastern Power Networks plc